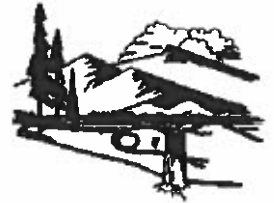




Department of Environmental Quality

To protect, conserve and enhance the quality of Wyoming's environment for the benefit of current and future generations.



Mark Gordon, Governor

Todd Parfitt, Director

June 16, 2021

City of Cheyenne
2101 O'Neil Ave
Cheyenne, WY 82001

RE: Lease Agreement between the Wyoming Department of Environmental Quality and City of Cheyenne

Dear Mr. Collins:

Enclosed for your execution is an electronic original of the Lease Agreement between the WDEQ and City of Cheyenne.

If you agree with the provisions of this agreement please execute by electronic signature.

If you have questions regarding the content of this contract, please contact Dale Vanlandingham at (307) 777-1947.

Sincerely,

Jennifer Bjerke-Mickle

Jennifer Bjerke-Mickle
Accountant

Enclosures

**LEASE AGREEMENT BETWEEN THE
WYOMING DEPARTMENT OF ENVIRONMENTAL QUALITY
AND THE CITY OF CHEYENNE**

GROUND LEASE

This Ground Lease ("Lease") is made and entered into this ____ day of _____, 20__ by and between the City of Cheyenne ("Lessor"), a municipal corporation, the address for which for the purposes of this Lease is 2101 O'Neil Avenue, Cheyenne, Wyoming 82001 and the Wyoming Department of Environmental Quality ("Lessee"), having its principal office at 200 West 17th Street, Cheyenne, Wyoming, 82002, collectively referred to herein as "Parties."

RECITALS

1. Lessor is the owner of certain real property, generally described as situated in the County of Laramie, State of Wyoming, and more particularly described as follows:

Final Plat, North Cheyenne Community Part, an addition to the City of Cheyenne, which is situated in the North One-Half of Section 21, and the East One-Half of Section 16, in Township 14 North, range 66 West, 6th P.M., Laramie County, Wyoming, and which is comprised of approximately 173.48 acres, more or less, which is currently being used by the Lessor for public outdoor recreational activities.

2. The Parties desire to execute this Lease to grant Lessee the right to use and occupy the area of land described above for the purpose of conducting government business described as placement of an ambient air quality monitor. Specifically, Lessee desires to monitor for particulate pollution for the purpose of determining compliance with the EPA's National Ambient Air Quality Standards (NAAQS) for the protection of public health. The area subject to this Lease is hereinafter referred to as "Premises." The Premises will be used by Lessee solely for the purpose of installing and using ambient air quality and meteorological monitor(s) and such other equipment as may be necessary to carry out the governmental function of air quality monitoring.

3. The Parties desire to enter into this Lease for the purpose of defining their rights, duties and liabilities relating to the Premises. In consideration of the matters described above, and of the mutual benefits and obligations set forth in this Lease, the Parties agree as follows.

4. Lessor, by this Lease, grants to Lessee the right to use the Premises for the sole and exclusive purposes of conducting air quality monitoring, subject to the terms and conditions of this Lease.

5. The term of this Lease shall commence on the last date that authorized representatives of both Lessor and Lessee have executed this Lease ("Effective Date"), as provided herein, and shall continue thereafter through June 30, 2029, unless sooner terminated in accordance with the provisions of this Lease. It shall be renewable by written consent of the parties for five year periods indefinitely thereafter.

6. This Lease is not valid and shall not become effective until it is signed by an authorized representative of Lessor, an authorized representative of Lessee, an authorized representative of the Wyoming Department of Administration and Information, an authorized representative of the Office of the Attorney General of Wyoming, and if required by Wyo. Stat. § 9-2-1016(b)(iv), by the Governor or his designee.

7. The Lessee shall pay rent to Lessor in the amount of Two-Thousand Five hundred Dollars (\$2,500.00) per year. The first annual rent payment shall be due within sixty (60) days after the Effective Date of this Sublease and within sixty (60) days after each anniversary of the Effective Date during the term of this Lease. All rent payments shall be delivered to the City Treasurer at the address stated above in this Lease. The total amount of rent during the term of this Lease shall not exceed Twenty Thousand Dollars (\$20,000.00).

8. So long as Lessee is not in default with regard to any terms and conditions of the Lease, the Lessee shall have the right to use the Premises for the purposes described herein and Lessor shall not conduct any activity on the Premises which would unreasonably interfere with the use of the Premises by Lessee.

9. Lessee shall not use the Premises for any purpose other than those governmental purposes described herein. Lessor understands that such governmental purposes may include staff tours of the site, as needed from time to time by Lessee for training purposes. Lessee shall not engage in any activity on the Premises that would create an unreasonable risk of harm, injury or damage to the Premises, to adjacent land owned by Lessor, or to persons who may be lawfully present on the Premises or adjacent land. Lessee shall permit Lessor or its agents to enter the premises at all reasonable hours to inspect the premises or make repairs; to show the premises to prospective buyers; or at any time within ninety (90) days before expiration of the term, to show the Premises to others wishing to rent the Premises, all provided that Lessee's use of the Premises shall not be unreasonably impaired. Lessee shall, within ninety (90) days before expiration of the term, permit the usual notices of "For Rent" to be placed on the Premises and to remain thereon without hindrance and molestation.

10. Lessee shall be allowed to construct or install an air quality monitor, which shall remain the property of the Lessee, on the Premises. Lessee shall not construct any permanent improvements on the Premises without the express written consent of Lessor. At the conclusion of the term of this Lease, Lessee shall remove the air quality monitor and surrender the Premises to Lessor in the condition which existed upon the Effective Date of this Lease, except for ordinary wear and tear arising from Lessee's use of the Premises.

11. Each Party to this Lease shall assume the risk of any liability arising from its own conduct. Neither Party agrees to insure, defend or indemnify the other. The Lessee shall be self-insured for liability through the State Self Insurance Program (SSIP), subject to the procedural and substantive limitations of the Wyoming Governmental Claims Act and all other applicable law. Lessor assumes the risk of any damage to its personal property held on the Premises.

12. This Lease shall be governed by the laws of the State of Wyoming. The venue shall be the First Judicial District, Laramie County, Wyoming. Pursuant to Wyo. Stat. § 1-39-104(a),

the State of Wyoming and the Lessee expressly reserve sovereign immunity by entering into this Lease and the Lessor expressly reserves governmental immunity. Each of them specifically retains all immunities and defenses available to them as sovereigns or governmental entities pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other applicable law. The parties acknowledge that the State of Wyoming has sovereign immunity and only the Wyoming Legislature has the power to waive sovereign immunity. Designations of venue, choice of law, enforcement actions, and similar provisions shall not be construed as a waiver of sovereign immunity. The parties agree that any ambiguity in this Lease shall not be strictly construed, either against or for either party, except that any ambiguity as to immunity shall be construed in favor of immunity.

13. This Lease may be terminated, without cause, by Lessee or Lessor upon thirty (30) days written notice.

14. The Parties do not intend to create in any other individual or entity the status of third party beneficiary, and this Lease shall not be construed so as to create such status. The rights, duties, and obligations contained in this Lease shall operate only between the Parties hereto. The provisions of this Lease are intended only to assist the Parties in providing Premises which may be used by Lessee for air quality monitoring purposes.

15. Neither Party shall have the right to assign this Lease without the express written consent of the other Party.

16. No waiver of any condition or legal right or remedy shall be implied by the failure of either Party to declare a forfeiture, or for any other reason, and no waiver of any condition or covenant shall be valid unless it is in writing, signed by the Party granting or consenting to such waiver. The failure by Lessee to insist upon the strict performance of any term or condition of this Lease, or to exercise any right, power or remedy consequent upon a breach shall not constitute a waiver of any such breach of such term or condition. A waiver of any breach shall not affect or alter this Lease and each and every term and condition of the Lease shall continue in full force and effect regardless of any breach.

17. This Lease, consisting of five (5) pages, sets forth all the covenants, promises, agreements, conditions and understandings between the Parties and there are no covenants, promises, agreements, conditions or understandings relating to the subject matter of this Lease, either oral or written, other than as set forth in this Lease. Except as otherwise provided in this Lease, no subsequent alteration, amendment, change or addition to this Lease shall be binding upon the Parties unless reduced to writing and signed by them.

18. Should any portion of this Lease be judicially determined to be illegal or unenforceable, the remainder of the Lease shall continue in full force and effect, and the parties may renegotiate the terms affected by the severance.

19. All notices required by this Lease shall be in writing and shall be sent by registered or certified mail, postage pre-paid, and return receipt requested, or by personal service to the Party at the address given above.

20. Lessor warrants that Lessee shall be granted peaceable and quiet enjoyment of the premises free from any eviction or interference by Lessor if Lessee fully and punctually performs the terms and conditions imposed on Lessee.

21. Lessor shall pay all taxes, assessments, or other governmental charges that shall, or may, during the lease term be imposed on, or arise in connection with the Premises.

22. Lessee shall share all data collected with Lessor throughout the term of this Lease.

23. The parties shall be bound by all existing easements, contracts, and encumbrances of record relating to the Premises.

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25. In witness hereof, the Parties to this Lease, through their duly authorized representatives, have executed this Lease Agreement on the dates set out below, and certify that they have read, understood, and agreed to the terms and conditions as set forth herein.

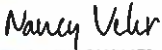
LESSEE: WYOMING DEPARTMENT OF ENVIRONMENTAL QUALITY

Todd Parfitt, Director

Date

WYOMING DEPARTMENT OF ENVIRONMENTAL QUALITY, AIR QUALITY DIVISION

DocuSigned by:



6/16/2021

Nancy E. Vehr, Administrator

Date

WYOMING DEPARTMENT OF ADMINISTRATION AND INFORMATION

Patricia L. Bach, Director

Date

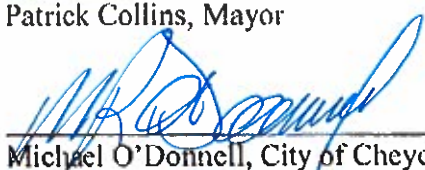
Russ Noel, Deputy Director

Date

LESSOR: CITY OF CHEYENNE

Patrick Collins, Mayor

Date

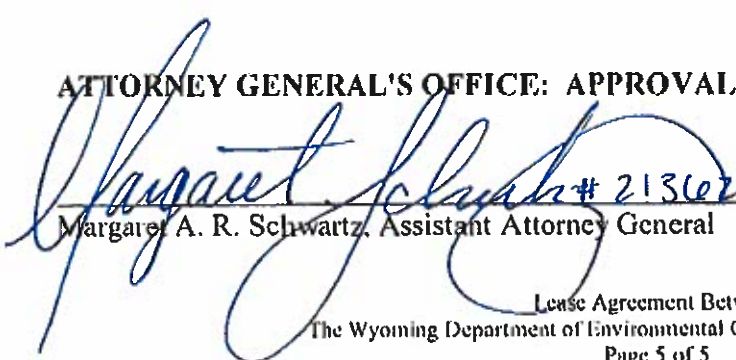


Michael O'Donnell, City of Cheyenne Attorney

6/17/21

Date

ATTORNEY GENERAL'S OFFICE: APPROVAL AS TO FORM



Margaret A. R. Schwartz, Assistant Attorney General

6/15/21

Date